

Court No. - 3

Case :- WRIT - C No. - 48192 of 2008

Petitioner :- Durga Ispat Pvt. Ltd.

Respondent :- M.D. Paschimanchal Vidyut Vitran Nigam Ltd.
And Another

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :-

Hon'ble Pritinker Diwaker,J.

Hon'ble Saral Srivastava,J.

Heard Sri B.C. Rai, learned counsel for the petitioner, Sri Nripendra Mishra, counsel for the respondents.

This petition relates to the payment of additional security for supply of electricity with the warning that if the payment of security is not made within the stipulated period, appropriate action would be taken in accordance with law. The petitioner has also challenged the provisions contained in clause (1) of Para 4.20 of the Electricity Supply Code, 2005, insofar as it provides 'as and when the distribution licence provides a choice to consumer to opt' being ultra vires the provisions of sub-section (5) of Section 47 of the Electricity Act, 2003.

Learned counsel for the petitioner fairly submits that number of identical matters have already been dismissed by this Court vide judgment dated 21.3.2017 passed in lead case **Writ-C No.30898 of 2016 (M/S Dev Prayag Paper Mill (Pvt.) vs. State of U.P. and 3 others)**. He submits that said judgment is already subject matter before the Apex Court and as such in the present petition also similar order can be passed. Considering the fair submission of learned counsel for the petitioner, the present petition is also dismissed in terms of order dated 21.3.2017 passed by this Court in a bunch of cases lead case Writ-C No.30898 of 2016 (M/S Dev Prayag Paper Mill (Pvt.) vs. State of U.P. and 3 others).

The writ petition is, accordingly, **dismissed**.

Order Date :- 17.11.2018

Ishan/S.Sharma